



CHAPTER clxxvii.

An Act to authorise the mayor aldermen and councillors of the metropolitan borough of Woolwich to supply electrical energy in bulk to the urban district council of Foots Cray to confer further powers upon the said mayor aldermen and councillors and to make further provision with respect to markets in the borough of Woolwich and for other purposes. A.D. 1903.

[11th August 1903.]

WHIEREAS the mayor aldermen and councillors of the metropolitan borough of Woolwich (in this Act called “the Council”) are authorised to supply electrical energy in that portion of the metropolitan borough of Woolwich (in this Act called “the borough”) which lies to the south of the River Thames and are possessed of stations and other plant and accessories for the generation and supply of electrical energy and are able at such stations to generate a larger amount of electrical energy than is actually required for the supply of the borough :

And whereas the urban district council of Foots Cray (in this Act called “the Foots Cray Council”) are authorised to supply electrical energy within their district but are not possessed of a station or means of generating electrical energy and it is expedient that the Council should be authorised to supply to the Foots Cray Council and that the Foots Cray Council should be authorised to take from the Council a supply of electrical energy in bulk :

And whereas it is expedient that further powers should be conferred upon the Council with reference to the wiring and fitting of premises of their consumers and prospective consumers and the hiring selling and letting of dynamos motors lamps machinery and apparatus for and in relation to the production supply or utilisation

A.D. 1903. of electrical energy and that they should be authorised to borrow
— money for those purposes :

And whereas under the provisions of certain letters patent dated first June in the sixteenth year of the reign of His Majesty King James I. and under the provisions of the Public Health Act 1875 and of section 19 of the London Government Act 1899 and the London (Woolwich) Scheme 1900 made under that section certain market rights duties and privileges are vested in or imposed upon the Council with respect to that part of the borough which is within the parish of Woolwich and they are also authorised to hold markets in other parts of the borough and it is expedient that the provisions of the said letters patent and Acts and scheme should be extended to the whole of the borough :

And whereas absolute majorities of the whole number of the Council at meetings held on the twelfth day of November 1902 and the eleventh day of December 1902 after in each case ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Kentish Independent a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meetings resolved that the expense in relation to promoting the Bill for this Act should be charged on the general rate levied and collected in the borough :

And whereas such resolutions were respectively published twice in the Kentish Independent and have received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-sixth day of March one thousand nine hundred and three and by adjournment on the second day of April one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and

[3 EDW. 7.] *Woolwich Borough Council Act, 1903.* [Ch. clxxvii.]

Commons in this present Parliament assembled and by the authority of the same as follows :— A.D. 1903

1. This Act may be cited as the Woolwich Borough Council Act 1903. Short title.

2. The Council may supply to the Foots Cray Council and the Foots Cray Council may take from the Council electrical energy in bulk at or near the boundary of the borough in such manner and upon such terms and conditions as may be agreed between the Council and the Foots Cray Council and the Council and the Foots Cray Council may enter into and carry into effect contracts agreements and arrangements for and with respect to the purposes aforesaid. Supply of electrical energy to Foots Cray Council.

3.—(1) The Council may provide sell let for hire and fix set up alter repair and remove but shall not manufacture dynamos motors are lamps incandescent lamps conductors electric lines fittings machinery and apparatus (in this Act referred to as “ fittings ”) for and in relation to the production supply distribution or utilisation of electrical energy and may provide all materials and do all work necessary or proper in that behalf and may demand and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removal of such fittings and for securing their safety and return to the Council as the Council may think fit or as may be agreed upon between them and the person to or for whom the same are sold let fixed set up altered repaired or removed and any remuneration rents and charges payable under the provisions of this section shall be recoverable summarily as a civil debt. Power to Council to supply materials and fittings for electricity.

(2) No fittings let for hire by the Council under this section shall be subject to distress or to the landlord's remedy for rent nor to be taken in execution under any process of law or equity or any proceeding in bankruptcy against the person or persons in whose possession the same may be Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof.

(3) The Council may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear.

(4) Any expenses incurred by the Council under this section shall be deemed to be expenses incurred by them under the Electric Lighting Act 1882 and the purposes of this section shall be deemed

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A.D. 1903. to be purposes for which the Council may borrow money under
— section 8 of the said Act.

Provisions of
letters patent
&c. relating
to markets
in parish of
Woolwich to
extend to re-
mainder of
borough.

4. The provisions of the recited letters patent dated first June in the sixteenth year of the reign of His Majesty King James I. relating to or authorising the holding of markets in the parish of Woolwich and all the powers authorities rights duties and privileges of the Council in relation thereto under the said letters patent and under the Public Health Act 1875 and the London Government Act 1899 and the London (Woolwich) Scheme 1900 made thereunder or otherwise including the power to levy tolls and to demand and take charges in respect of such markets shall extend and apply to the whole of the borough and all such letters patent and Acts and scheme shall be read and have effect as if the whole of the borough had been referred to therein instead of the said parish.

Costs of Act

5. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate levied and collected in the borough.

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